

January 12, 2026

Assembly Member Rebecca Bauer-Kahan
Chair of the Assembly Privacy
and Consumer Protection Committee
Capitol Office, 1021 O Street, Suite 5210
Sacramento, CA 95814

Assembly Member Diane Dixon
Vice Chair of the Assembly Privacy
and Consumer Protection Committee
Capitol Office, 1021 O Street, Suite 5330
Sacramento, CA 95814

Assembly Member Josh Lowenthal
California State Assembly
Capitol Office, 1021 O Street, Suite 8320
Sacramento, CA 95814

RE: Ad Trade Letter in Opposition to California AB 883

Dear Chair Bauer-Kahan, Vice Chair Dixon, and Assembly Member Lowenthal:

On behalf of the advertising industry, we respectfully oppose AB 883 in its current form, and we offer this letter to express our non-exhaustive list of concerns with the proposed legislation.¹ We and the companies we represent, many of whom do substantial business in California, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. We further appreciate the Assembly's focus on protecting personal information and addressing the unique risks faced by elected officials and judges. However, as currently drafted, AB 883 contains provisions that would remove access by elected officials and judges to essential services. In addition, the short five-day timeline for effectuating deletion requests in AB 883 would be an unnecessary burden for well-meaning data brokers endeavoring to comply with applicable laws. Therefore, the Assembly Committee on Privacy and Consumer Protection ("Committee") should consider updates to clarify AB 883.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.² By one estimate, approximately 18.9% of California jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 20.9% by 2029.³ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on the points we discuss in this letter.

¹ California AB 883 (2025-2026 Reg. Sess.), located [here](#) (hereinafter, "AB 883").

² S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

³ *Id.* at 15-16.

I. AB 883 Should Explicitly Incorporate Existing California Law Exceptions

AB 883 would add a new provision to the California Civil Code, Section 1798.99.86.5, requiring the California Privacy Protection Agency to upload lists of elected officials and judges into the Delete Request and Opt-Out Platform (“DROP”), and registered data brokers to treat those entries as mandatory deletion requests.⁴ A data broker receiving notification that deletion is required would be required to delete the personal information about listed individuals within five days.⁵

Although AB 883 relies on the deletion mechanism established under the Delete Act, it does not expressly incorporate the statutory limitations and exceptions that apply to deletion requests under the California Consumer Privacy Act (“CCPA”) and the Delete Act.⁶ Because the bill would create a standalone section, Section 1798.99.86.5, and a new deletion obligation for personal information collected about elected officials and judges that is separate from Section 1798.99.86, it is unclear whether the exceptions that appear in the Delete Act would apply to the new proposed section. Furthermore, AB 883 does not reference the CCPA or any of its exceptions, including those in Sections 1798.105, 1798.145, or 1798.146. As a result, the bill would create confusion regarding what information is subject to a deletion request, particularly in situations where data retention is legally required or necessary to comply with other laws, protect free expression, cooperate with law enforcement, or defend legal claims, among other important exceptions that are already recognized under California law. In addition, the bill could result in unintended impacts for elected officials and judges. For example, without reasonable exemptions aligned with the Fair Credit Reporting Act and the Gramm-Leach-Bliley Act, elected officials and judges could face unforeseen barriers to accessing credit and other critical services.

To avoid unintended consequences, we respectfully recommend clarifying that deletions required under AB 883 are subject to the same exceptions that apply to other deletion requests under California law. Specifically, we propose amending the bill to provide that a data broker receiving a notification that deletion is required must execute the deletion within the applicable timeframe “and as limited by Sections 1798.105, 1798.145, and 1798.146.” We urge the Committee to revise AB 883 to clarify that these exceptions apply.

II. The Bill Should Align the Deletion Timeline With Existing Law

AB 883 would also require registered data brokers receiving a deletion notification to effectuate data deletion within five days, a substantially shorter time period than the forty-five day period permitted for other deletion requests submitted through DROP under the Delete Act.⁷ AB 883’s shortened timeline could present significant operational challenges, as data brokers have mapped compliance processes to the existing forty-five day timeline under the Delete Act and a five-day time period is significantly shorter than the time period that is provided under existing law. By requiring deletion pertaining to elected officials and judges to be completed

⁴ AB 883 § 1798.99.86.5(c)(1).

⁵ AB 883 § 1798.99.86.5(c)(2).

⁶ Cal. Civ. Code § 1798.99.86(c)(2).

⁷ Cal. Civ. Code § 1798.99.86(c)(1)(A).



within five days, the bill would increase the risk of error even for well-meaning data brokers intending to comply and may lead to conflicts with other legal obligations that require retention of data.

Harmonization with existing law is essential to ensuring that Californians have clear and predictable rights while minimizing unnecessary compliance costs for businesses operating in the state. By aligning AB 883's deletion timeline with the existing forty-five day standard in the Delete Act, the Committee would promote consistency across California privacy laws and support implementation efforts that protect state residents. The bill should be revised to extend the five-day timeline to forty-five days.

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We and our members strongly support meaningful privacy protections for Californians. However, AB 833 would benefit from targeted updates to clarify its scope and align with existing law. We therefore respectfully ask the Committee to decline to advance AB 883 as proposed.

Thank you in advance for your consideration of this letter.

Sincerely,

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CC: Members of the California Assembly Privacy and Consumer Protection Committee

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